WHITE & COMPANY

ESTABLISHED 1871

Ref: 628496

08 December 2023

Mrs Jade Taylor
25 Abbotts Road
Bishops Waltham Hampshire
SO32 1RE

Dear Mrs Taylor,

Thank you for your kind invitation to quote for the removal of your possessions. Please find enclosed in this document your written Quotation, our Terms and Conditions of Business, Insurance Summary and the Acceptance of Quotation.

We have tailored your move to be cost effective whilst providing a superior level of customer service, but if you have any questions or amendments please do not hesitate to contact us. Whilst in our care all your furniture and belongings will be wrapped in dense transit covers, additionally, items such as beds and soft upholstery will receive the enhanced protection afforded by individual tailored hygienic sleeves. Naturally, our staff will lay protective floor coverings to both the collection and delivery address to avoid soiling of carpets.

For your peace of mind during the removal we recommend you arrange insurance for loss or damage to your goods. We can arrange this for you under our policy subject to the details shown on the enclosed Insurance Summary. To do this, a value of the goods will need to be provided as requested on the acceptance page. If you do not take advantage of the insurance cover our liability will be limited, as detailed in Terms and Conditions.

Packing and Unpacking Service

As requested, our quotation is inclusive of a full packing service by our professional staff, using the highest quality materials and cartons. They will be responsible for the packing of all items from china and glassware, to clothing, linen and books. Transit wardrobe cartons will be utilised for the protection of your hanging garments.

The unpacking will be carried out at your new home to your requirements. They will unpack onto flat services only and not place away into cupboards. We do recommend that you allow us to unpack, but if you wish cartons can be left for you to unpack at your leisure. If this is the case, we would ask you to contact us when you have finished so that wherever possible we can collect the empty cartons. It is important to remember that your possessions are protected under our insurance protection only if we both pack and unpack for you.

All the experience of over 150 years is at your disposal, along with the benefits of modern facilities, vehicles and materials. Our staff are fully experienced in all aspects of moving and storage to ensure that your removal is as smooth as possible. White & Company has achieved Quality Assurance Accreditation to British Standard and International Qualification BS EN 12522 and BS EN 14873. White & Company complies with the Code of Practice issued by the Association of Removers and monitored by the Trading Standards Institute. We draw your attention to Clause 6 of The Code of Practice which relates to Cancellation or Significant Alteration by the Member.

To proceed with the quote and make a booking we need the Acceptance of Quotation completed with the necessary details and returned to us by post, fax or email. By doing this you are understanding and accepting our Terms and Conditions of Business as detailed in this quote. Should you have any questions please make sure you contact us.

White & Co Plc (Portsmouth)
Dundas Spur Copnor
Portsmouth Hants PO3 5NL
Phone 023 92663221
Email portsmouth@whiteandcompany.co.uk

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We look forward to receiving your further instructions and assure you of our very best attention at all times.

Yours sincerely
WHITE & CO PLC

Manager

Encs: Quotation / Acceptance

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Dundas Spur Copnor
Portsmouth Hants PO3 5NL
Phone 023 92663221
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Customer:	Our Reference:	Date:
Mrs Jade Taylor	628496	08 December 2023
MOVE FROM: 25 Abbotts Road Bishops Waltham Hampshire SO32 1RE	**MOVE TO:** TBC Bishops Waltham Hampshire	

BASIS OF QUOTATION:

	Ex Total	VAT	Inc Total
Local Removal (Including Packing)	**£ 2,715.00**	**£ 543.00**	**£ 3,258.00**
Optional Waiting Time Waiver Avoid additional charges for delay in gaining access to new property.	**£ 60.00**	**£ 12.00**	**£ 72.00**
Insurance Surcharge Removal 12% up to £50,000 value as per details on attached Removals & General Insurance Summary.	**£ 325.80**		**£ 325.80**
Insurance Premium Tax Removal 12%	**£ 39.10**		**£ 39.10**
TOTAL	**£ 3,139.90**	**£ 555.00**	**£ 3,694.90**

Volume: 74.784 cbm **SUBJECT TO GOOD VEHICLE ACCESS**

This quotation and its acceptance by you are subject to our Terms and Conditions, which are enclosed, and in particular we draw your attention to those clauses 3, 6, 8, 9,10 & 11 relating to cancellation/postponement rights and charges, limits of liability and the time limit for making claims. For this reason we offer the benefit of insurance.

The price(s) we have quoted includes insurance for loss or damage to your goods whilst they are in our custody and control, subject to you providing us with a declaration of the value of your goods and subject to the terms shown on the Insurance Summary. Please read the Insurance Summary carefully to ensure that you are familiar with the cover provided. If you require a sum insured over £50,000 our price(s) will be increased (as separately advised) to reflect the higher sum insured.

We reserve the right to amend our price if there is any increase in transport or labour cost either before or during the carrying out of the contract. If you wish us to carry out and service or move goods, which are specifically excluded by these conditions, you must have our written agreement before signing this contract

Optional Service: WAITING TIME WAIVER: To avoid additional charges being applied for a delay in gaining access to your new property up to a maximum of two hours after the agreed access time. £60.00 plus VAT @ 20%

Cooling Off Period: As a consumer, you have certain rights to cancel this contract with us if the agreement between us has been finalised in a particular way. If we have agreed the contract for removals away from our own premises (for example, at your house) or over the telephone or be email (without having been to your house first), you have the right to cancel the contract within 14 days. This known as a cooling-off period. However, if you want to schedule the removals date within the 14-day period, you would need to forego this cooling-off period. If the above exception is applicable to this removal, we will highlight this to you, and ask you to tick the box on the 'acceptance of quotation' form to confirm your request to have the removal carried out within the 14-day period.

Registered Office: Hillsons Road, Botley, Southampton, SO30 2DY Reg. No. 52204 (England) Vat Reg. No. 107 3607 91

White & Co Plc (Portsmouth)
Dundas Spur Copnor
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WHITE & COMPANY

ESTABLISHED 1871

ACCEPTANCE:

Customer:	Our Reference:	Date:
Mrs Jade Taylor	628496	08 December 2023

MOVE FROM: 25 Abbotts Road	MOVE TO: TBC
Bishops Waltham Hampshire SO32 1RE	Bishops Waltham Hampshire

	Ex Total	VAT	Inc Total
Local Removal (Including Packing)	**£ 2,715.00**	**£ 543.00**	**£ 3,258.00**
Optional Waiting Time Waiver Avoid additional charges for delay in gaining access to new property.	**£ 60.00**	**£ 12.00**	**£ 72.00**
Insurance Surcharge Removal 12% up to £50,000 value as per details on attached Removals & General Insurance Summary.	**£ 325.80**		**£ 325.80**
Insurance Premium Tax Removal 12%	**£ 39.10**		**£ 39.10**
TOTAL	**£ 3,139.90**	**£ 555.00**	**£ 3,694.90**

Volume: 74.784 cbm **SUBJECT TO GOOD VEHICLE ACCESS**

THE FOLLOWING IS TO BE COMPLETED BY THE CUSTOMER AND THIS PAGE IS TO BE RETURNED TO US BEFORE COMMENCEMENT OF THE REMOVAL

1	**Packing Date(s)** (Packing is normally done before the removal).	
2	**Removal Date(s)**	
2A	**Time origin property has to be vacated by:**	
3	**Delivery Date** (Not applicable if storage is required).	
3A	**Time keys will be available to delivery address:**	
4	**Insurance Value** (If Insurance is required, fill in the full value of the property to be removed. If Insurance is not required, insert Nil. If this is left blank, it will be assumed that insurance is not required). Additional charge is payable upon any amount which exceeds the sum of £50,000 at the following rates: *Removal risks at a rate of 20p per each additional £100* *Storage risks at a rate of 10p per each additional £100 per month or part of a month:*	£
5.	I confirm that I want my removals date to be within 14 days of this contract, and understand that the 14-day cooling off period will not apply in my case, as advised in my quotation.	Tick to Confirm ☐

6. Delivery Address (Not applicable if storage is required):	**7. Contact/Postal Address** (After your removal has taken place):
TBC Bishops Waltham Hampshire	

I/We agree to pay all charges prior to the commencement of my/our removal (as per clause 7 of the Terms & Conditions) unless prior approval has been granted by the Contractor for charges to be debited to a regular and approved company account in which case, an official order must accompany the Acceptance Form and all charges are then payable on presentation of invoice. I/We accept your quotation as set out on this form and agree to the Terms and Conditions of your Contract, a copy of which is in my possession.
I/we have read and understand the Insurance Summary.

Print Name:	**Date:**
Signature:	**Company Name and Tax Number (if applicable):**

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Dear Customer,

WAITING TIME WAIVER

Unfortunately, for a great many reasons, it is often the case that keys to your new home will not be available at the time our vehicle and staff arrive to undertake delivery. In circumstances such as this, it is frustrating for both yourself and our staff to wait until access can be gained and unloading can commence.

Our Terms and Conditions of Contract permit us to raise additional charges to you if access is not possible when our delivery team arrive at your new home. This amounts to £45.00 per hour per man plus VAT.

We offer a 'Waiting Time Waiver' which covers the first two hours of waiting time and that sum is shown as an optional service on our quotation. We recommend that, unless you can be certain of gaining access to your new home at the agreed time, you give careful consideration to purchasing the Waiting Time Waiver.

If access to your new home is still not possible after two hours of waiting we will discuss alternative options that are available to you.

Cooling Off Period:

As a consumer, you have certain rights to cancel this contract with us if the agreement between us has been finalised in a particular way. If we have agreed the contract for removals away from our own premises (for example, at your house) or over the telephone or be email (without having been to your house first), you have the right to cancel the contract within 14 days. This is known as a cooling-off period. However, if you want to schedule the removals date within the 14-day period, you would need to forego this cooling-off period,. If the above exception is applicable to this removal, we will highlight this to you, and ask you to tick the box on the 'acceptance of quotation' form to confirm your request to have the removal carried out within the 14-day period.

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FREQUENTLY ASKED QUESTIONS

How much notice do I need to give to book a removal date?

This varies a great deal and depends on numerous factors, but typically we recommend providing us with 2 weeks notice. However, in the unpredictable world of moving house, we appreciate it doesn't always work this way and we will always strive to accommodate your move even if we have just a few hours notice! As a large company we do have access to a large pool of resources to ensure you are not left without a removal company.

Are my possessions covered for loss or damage?

Yes, we offer insurance protection but you need to advise us of the value of your goods (on the Acceptance form) and pay the appropriate fee in respect of the same. If you do not request insurance our liability to you will be restricted in accordance with our Terms and Conditions and we will assume that you have made alternative insurance arrangements

I'm packing the boxes – but what about the furniture, appliances and large pictures?

If you have requested to do your own packing, you only need to concern yourself with the smaller items which fit into boxes. Anything else will be wrapped and protected by us during transit to ensure it arrives safely.

What about clothes?

Irrespective of whether you are packing or we are packing, for hanging clothes we will bring wardrobe boxes on the day. Soft clothing such as jumpers and socks can usually be left inside chests of drawers.

What do I need to do in advance?

If we're packing – very little, we'll pack out of cupboards and off of shelves. If you're packing, you need to have finished the packing so it is ready to move. Our surveyor will have issued a schedule of services to clarify what we are expected to do/not do on the day with regard to dismantling furniture and items which are not to be moved. However, the following rules usually apply;

Washing machines should be disconnected with drum fixing brackets in place, by you on, or prior to, the day.

Lofts should be emptied unless we have specifically agreed to do this for you.

Freezers should be emptied and dried. Otherwise they are heavy, leak water in the vehicle onto the rest of the consignment and your food may defrost. When it is delivered, it should be left to stand for a little while before being plugged in.

Parking. If parking is an issue, you must arrange for sufficient space outside your property for the parking of our vehicle. Please bear in mind that you should leave enough space for the parking of the equivalent of a double decker bus (approximately 5 average car lengths.)

Items not to go such as important paperwork and keys need to be placed out of the way. Our staff work very quickly and we do not want to load anything onto the van which you need to keep on you.

When do I pay?

We ask for payment at least 7 days prior to the start of your removal. We can take credit and debit card details by telephone or accept payment by cheque or bank transfer.

Look after the environment!

To reduce paper consumption, if you are able to correspond via email, please let us know and we can do so accordingly. Following your move, please keep used boxes clean and dry until we can collect and recycle them.

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White & Company Plc Terms and Conditions

If viewing this on a computer, please print, zoom in or enlarge the font to view more clearly.
The start and end of these Terms and Conditions is marked. Should these not be visible, or should the clause numbers not run in sequence, part may be missing and you should contact us immediately. By signing the acceptance of quotation it will be taken that you have received, read and understood these terms and conditions in full.

- START OF TERMS AND CONDITIONS –

Introduction
These conditions explain the rights, obligations, and responsibilities of all parties to this Agreement. Where we use the word 'You' or 'Your' it means the Customer: 'We', 'Us' or 'Our' means the Remover. These terms and conditions can be varied or amended subject to prior written agreement. **In Clauses 8, 9, 10, and 11 We limit or exclude Our liability for loss and damage. We recommend You arrange insurance to cover Your goods. We are able to arrange insurance for Your benefit upon request. This insurance will be separate from this contract and subject to the terms and conditions of the policy.**

1. Our Quotation

1.1 Our quotation, unless otherwise stated, does not include insurance, cancellation/postponement waivers, customs duties, port charges including (but not limited to) demurrage, inspections, or any fees, or taxes payable to government bodies or agencies.

1.2 Our Quotation is valid for twenty-eight days from the date of issue. Unless already included in Our Quotation, reasonable additional charges will apply in the following circumstances:

1.2.1 If the work does not commence within twenty-eight days of acceptance;
1.2.2 Where We have given You a price including redelivery from store within Our Quotation and the re-delivery from store has not taken place within six months from the date of the issue of the quotation;
1.2.3 Our costs change because of currency fluctuations, changes in taxation, freight, fuel, ferry or toll charges beyond our control.
1.2.4 The work is carried out on a Saturday, Sunday, or Public Holiday or outside normal hours (08.00-18.00hrs) at your request.
1.2.5 We have to collect or deliver goods at Your request above the ground floor and first upper floor.
1.2.6 If You or Your agents request collection or access to Your goods whilst they are in store;
1.2.7 We supply any additional services, including moving or storing extra goods (these conditions apply to such work). This may include (but is not limited to) situations in which it becomes apparent when We collect Your goods that there are additional items, goods or other load, of which We were not informed when We provided Our quote and which was not, therefore, included in the quote.
1.2.8 The entrance or exit to the premises, stairs, lifts or doorways are inadequate for free movement of the goods without mechanical equipment or structural alteration, or the approach, road or drive is unsuitable for our vehicles and/or containers to load and/or unload within 20 metres of the doorway.
1.2.9 We have to pay parking or other fees or charges (including fines where you have not arranged agreed suspension of parking restrictions) in order to carry out services on Your behalf. For the purpose of this Agreement parking fines for illegal parking, caused by Our negligence, are not fees or charges and You are not responsible for paying them.
1.2.10 There are delays or events outside Our reasonable control which increase or extend the resources or time allowed to complete the agreed work.
1.2.11 We agree in writing to increase Our limit of liability set out in Clause 8.1 prior to the work commencing;
1.2.12 We have to pay operational charges in order to carry out the services, which may be brought in at any time by the law and amended at any time by the law. Such operational charges may include (but are not limited to) Low Emission Zone (LEZ) charges and congestion charges.

1.3 You agree to pay any reasonable charges arising from the above circumstances.

2 Work not included in the quotation

2.1 Unless agreed by us in writing, we will not:

2.1.1 Dismantle or assemble furniture of any kind
2.1.2 Disconnect, re-connect, dismantle or re-assemble appliances, fixtures, fittings or equipment.
2.1.3 Take up or lay fitted floor coverings.
2.1.4 Move items to or from a loft, unless properly lit and floored and safe access is provided.
2.1.5 Move or store any items excluded under Clause 4.
2.1.6 Dismantle or assemble garden furniture and equipment including, but not limited to: sheds, greenhouses, garden shelters, outdoor play equipment, and satellite dishes, or move paving slabs, planters and the like.

2.2 Our staff are not authorised or qualified to carry out such work. We recommend that a properly qualified person is separately employed by You to carry out these services.

3 Your responsibility

3.1 It will be your responsibility to:

3.1.1 Arrange adequate insurance cover for the goods submitted for removal transit and/or storage, against all insurable risks as Our liability is limited under clauses 8.1 and 8.2.
3.1.2 Obtain at Your own expense, all documents, permits, permissions, licences, customs documents necessary for the removal to be completed.
3.1.3 Pay for any parking or meter suspension charges incurred by Us in carrying out the work.
3.1.4 Be present or represented throughout the collection and delivery of the removal.
3.1.5 Where We provide You with inventories, receipts, waybills, job sheets or other relevant documents You will ensure that they are signed by You or Your authorised representative as confirmation of collection or delivery of the Goods.
3.1.6 Take all reasonable steps to ensure that nothing that should be removed is left behind and nothing is taken away in error.
3.1.7 Arrange proper protection for goods left in unoccupied or unattended premises, or where other people such as (but not limited to) tenants or workmen are, or will be present.
3.1.8 Prepare adequately and stabilize all appliances or electronic equipment prior to their removal.
3.1.9 Empty, properly defrost and clean refrigerators and deep freezers. We are not responsible for the contents.
3.1.10 Ensure that all domestic and garden appliances, including but not limited to washing machines, dish washers, hose pipes, petrol lawn mowers are clean and dry and have no residual fluid left in them;
3.1.11 Provide Us with a correct and up to date contact address and telephone number during removal transit and/or storage of goods.
3.1.12 Arrange appropriate transport, storage or disposal of goods listed in clause 4

3.2 Other than by reason of Our negligence or breach of contract, We will not be liable for any loss or damage, costs or additional charges that may arise from failure to discharge these responsibilities.

4 Goods not to be submitted for removal or storage

4.1 Unless previously agreed in writing by a director or other authorised company representative, the following items must not be submitted for removal or storage and will under no circumstances be moved or stored by Us. The items listed under 4.1.1 below may present risks to health and safety and of fire. Items listed under 4.1.2 to 4.1.7 below carry other risks and You should make Your own arrangements for their transport and storage.

4.1.1 Potentially dangerous, damaging or explosive items, including gas bottles, aerosols, paints, firearms, fuels, oils, and ammunition.
4.1.2 Jewellery, watches, trinkets, precious stones or metals, money, deeds, securities, mobile telephones, portable media and computing devices, stamps, coins, or goods or collections of any similar kind.
4.1.3 Goods likely to encourage vermin or other pests or to cause infestation or contamination.
4.1.4 We shall notify you in writing as soon as practicable if any of the Goods, are in Our opinion hazardous to health, dirty or unhygienic or likely to attract vermin or pests and under what conditions we would be prepared to accept such Goods or whether we refuse to accept them. Should we refuse to accept the goods We will have no liability to You.
4.1.5 Perishable items and/or those requiring a controlled environment.
4.1.6 Any animals, birds, fish, reptiles or plants.
4.1.7 Goods which require special licence or government permission for export or import.
4.1.8 Under no circumstances will Prohibited or stolen goods, drugs or pornographic material be moved or stored by Us.

4.2 If You submit such goods without Our knowledge We will make them available for Your collection and if You do not collect them within a reasonable time We may apply for a court order to dispose of any such goods found in the consignment. You agree to pay Us any charges, expenses, damages, legal costs or penalties reasonably incurred by Us in disposing of the goods.

5 Ownership of the goods

5.1 By entering into this Agreement, you guarantee that:

5.1.1 The goods to be removed and/or stored are Your own property, or the goods are Your property free of any legal charge; or
5.1.2 You have the full authority of the owner or anyone having a legal interest in them to enter into this Agreement and You have made the owner fully aware of these terms and conditions prior to entering into this Agreement and that they have agreed to them.
5.1.3 If at any time following the implementation of this agreement to its termination another person has or obtains an interest in the goods You will advise Us of their name and address in writing immediately.
5.1.4 You will provide a full indemnity and pay Us in respect of any claim for damages and/or costs brought against Us if either statement made in 5.1.1 or 5.1.2 is untrue.
5.1.5 If You wish to transfer responsibility of this Agreement to a third party You will advise Us in writing giving Us their full name and address. We will issue a new agreement to them. Our Agreement with You will remain in force until We have received a signed agreement from the third party.

6 Charges if You postpone or cancel the removal

6.1 If You postpone or cancel this Agreement, We reserve the right to charge you a reasonable postponement or cancellation fee according to how much notice is given as set out below at 6.1.1 – 6.1.4. We charge these fees based on an assessment of losses we have incurred as a result of You cancelling or postponing the removal. Examples of the types of loss We might incur are: administration/back office costs, being unable to re-fill a removal slot with another customer's work, or engaging employees to work for your booked removal. "Working days" refer to the normal working week of Monday to Friday and excludes weekends and Public Holidays.

6.1.1 More than 10 working days before the removal was due to start: No charge.
6.1.2 Between 5 and 10 working days inclusive before the removal was due to start: not more than 30% of the removal charge.
6.1.3 Less than 5 working days before the removal was due to start: not more than 60% of the removal charge.
6.1.4 Within 24 hours of the move taking place; not more than 75% of the removal charge.
6.1.5 On the day the work starts or at any time after the work commences up to 100% of Our charges.

6.2 Cancellation/Postponement Waiver
If offered, and paid for in advance of the commencement of the services, we agree to waive the charges in Clauses 6.1.1, 6.1.2 & 6.1.3. Our agreement to waive the charges is conditional upon Us receiving written notice of Your intention to Cancel/Postpone no later than 17:00 hours on the preceding Working Day before Services commence. The Cancellation/Postponement charge will entitle You to only one Cancellation/Postponement.

7 Payment

7.1 Unless otherwise agreed by Us in writing, payment is required in full by cleared funds at the time of booking the removal or storage period. In default of such payment We reserve the right to refuse to commence removal or storage until such payment is received. Such advance payments are protected under the BAR Advanced Payment Guarantee scheme, as detailed in the BAR Code of Practice. (T&C's apply)

7.2 In respect of all sums which are overdue to us, We will charge interest on a daily basis calculated at 4% per annum above the prevailing base rate for the time being of the Bank of England.

8 Our liability for loss or damage

8.1 We do not know the value of Your goods therefore We limit Our liability to a fixed limit per item. The amount of liability We accept under this agreement is reflected in Our charges for the work. If You wish Us to increase Our limit of liability per item You agree to pay a higher price for the work as stated in Condition 1.2.11 (Our Quotation).

~~8.2~~ Unless otherwise agreed in writing if we are negligent or in breach of contract We will pay You up to £40 for each item which is lost or damaged as a direct result of any negligence or breach of contract on Our part.

8.3 For goods destined to, or received from a place outside the United Kingdom:

8.3.1 We will only accept liability for loss or damage
(a) arising from Our negligence or breach of contract whilst the goods are in Our physical possession, or

(b) whilst the goods are in the possession of others if the loss or damage is established to have been caused by Our failure to pack the goods to a reasonable standard where We have been contracted to pack the goods that are subject to the claim.

8.3.2 Where We engage an international transport operator, shipping company or airline to convey Your goods to the place, port or airport of destination, We do so on Your behalf and subject to the terms and conditions set out by that carrier.

8.3.3 If the carrying vessel/conveyance, should for reasons beyond the carrier's control, fail to deliver the goods, or route them to a place other than the original destination, You may have limited recourse against the carrier depending upon the carriers particular terms and conditions of carriage, and You may be liable for General Average contribution (e.g. the costs incurred to preserve the vessel/conveyance and cargo) and salvage charges, or the additional cost of onward transmission to the place, port or airport of destination. These are insurable risks and it is Your responsibility to arrange adequate marine/transit insurance cover.

8.3.4 We do not accept liability for goods confiscated, seized, removed or damaged by Customs Authorities or other Government Agencies unless such confiscation, seizure, removal or damage arose directly as a result of Our negligence or breach of contract.

8.4 For the purposes of this Agreement an item is defined as:

8.4.1 The entire contents of a box, parcel, package, carton, or similar container; and

8.4.2 Any other object or thing that is moved, handled or stored by us.

9 Damage to premises or property other than goods

9.1 Because third party contractors or others are frequently present at the time of collection or delivery it is not always possible to establish who was responsible for loss or damage. therefore Our liability is limited as follows:

9.1.1 If we cause loss or damage to premises or property other than goods for removal as a result of our negligence or breach of contract, our liability shall be limited to making good the damaged area only.

9.1.2 If We cause damage as a result of moving goods under Your express instruction, against our advice, and where moving the goods in the manner instructed is likely to cause damage, We shall not be liable.

9.1.3 If We are responsible for causing damage to Your premises or to property other than goods submitted for removal and/or storage, You must note this on the worksheet or delivery receipt as soon as practically possible after the damage occurs or is discovered or in any event within a reasonable time. This is fundamental to the Agreement.

10 Exclusions of liability

10.1 We shall not be liable for loss or damage caused by fire or explosion, unless we have been negligent or in breach of contract. It is Your responsibility to insure Your Goods. If You ask Us in writing to arrange insurance cover for You We will, provided You declare the full replacement value of Your Goods and pay the premium in advance.

10.2 We shall not be liable for delays or failures to provide the services under this Agreement as a result of war, invasion, acts of foreign enemies, hostilities (whether war is declared or not), civil war, terrorism, rebellion and/or military coup, Act of God, adverse weather, third party industrial action, re-scheduled sailing, departure or arrival times, port congestion, or other such events outside our reasonable control.

10.3 Other than as a result of Our negligence or breach of contract We will not be liable for any loss, damage or failure to produce the goods as a result of:

10.3.1 Normal wear and tear, natural or gradual deterioration, leakage or evaporation or from perishable or unstable goods. This includes goods left within furniture or appliances.

10.3.2 Moth or vermin or similar infestation.

10.3.3 Cleaning, repairing or restoring unless We arranged for the work to be carried out.

10.3.4 Changes caused by atmospheric conditions such as dampness, mould, mildew, rusting, tarnishing, corrosion, or gradual deterioration unless directly linked to ingress of water.

10.3.5 For any goods in wardrobes, drawers or appliances, or in a package, bundle, carton, case or other container not both packed and unpacked by Us.

10.3.6 For electrical or mechanical derangement to any appliance, instrument, clock, computer or other equipment unless there is evidence of related external damage.

10.3.7 For any goods which have a pre-existing defect or are inherently defective.

10.3.8 For perishable items and/or those requiring a controlled environment.

10.3.9 Loss of structural integrity of furniture constructed of particle board resulting from crumbling of the board.

10.3.10 For items referred to in Clause 4.

10.4 No employee of Ours shall be separately liable to you for any loss, damage, mis-delivery, errors or omissions under the terms of this Agreement.

10.5 Where goods are handed out from store Our liability will cease upon handing over the goods to You or Your authorised representative (see Clause 11.1 below).

10.6 We will not be liable for any loss or damage caused by Us or Our employees or agents in circumstances where:

(a) there is no breach of this Agreement by Us or by any of Our employees or agents

(b) such loss or damage is not a reasonably foreseeable result of any such breach.

11 Time limit for claims

11.1 If You or Your authorised representative collect the goods, We must be notified in writing of any loss or damage at the time the goods are handed to You or Your agent otherwise we will not be liable.

11.2 We will not be liable for any loss of or damage to the goods unless a claim is notified to us, or to our agent or the company carrying out the collection or delivery of the goods on our behalf. This must be in writing as soon as such loss or damage is discovered (or with reasonable diligence ought to have been discovered) and in any event in detail within seven (7) days of delivery of the goods, in order to properly investigate the claim. We may agree to extend this time limit upon receipt of Your written request provided such request is received within seven (7) days of delivery. Consent to such a request will not be unreasonably withheld.

12 Delays in transit

12.1 Other than by reason of Our negligence or breach of contract, We will not be liable for delays in transit.

12.2 If through no fault of ours We are unable to deliver Your goods, We will take them into store. The Agreement will then be fulfilled and any additional service(s), including storage and delivery, will be at Your expense.

12.3 Any transit times quoted by Us are estimated and based upon information known to Us at the time. Transit times may vary due to a number of factors outside Our control including but not limited to changes in sailing or departure dates made by the freight/shipping company, changes in the routes used by the freight/shipping company and port congestion. We will advise You of any material changes to the transit times as soon as We become aware. We will not be liable for any loss or damage incurred by You as a result of delays in transit time unless directly attributable to Our negligence or breach of contract.

13 Our Right to Hold the Goods (lien)

"Lien" is the legal right of the remover to hold goods until the customer has paid all outstanding charges.

We shall have a right to withhold and ultimately dispose of some or all of the goods if You fail to pay the charges and any other payments due under this or any other Agreement. (See also Clause 22). These include any charges that We have paid out on Your behalf. While We hold the goods You will be liable to pay all storage charges and other costs (including legal costs) reasonably incurred by Us in recovering Our charges and applying Our right of lien. These terms and conditions shall continue to apply.

14 Disputes

If there is a dispute arising from this Agreement, which cannot be resolved, either party may refer it to the low cost independent Alternative Dispute Resolution (ADR) scheme provided by the British Association of Removers (BAR). Under this scheme, the case will be determined by an accredited independent ADR organisation. Recourse to the independent ADR scheme is subject to certain limits, current details of which are available upon request from BAR, Tel: 01923 699486, Fax: 01923 699481, Email: consumer.affairs@bar.co.uk. ADR does not prejudice Your right to commence court proceedings.

15 Our right to sub-contract the work

15.1 We reserve the right to sub-contract some or all of the work.

15.2 If We sub-contract, then these conditions will still apply.

16 Route and method

16.1 We have the right to choose the method and route by which to carry out the work and the location in respect of storage.

16.2 Unless it has been specifically agreed otherwise in writing in our Quotation, other space/volume/capacity on Our vehicles and/or the container may be utilised for consignments of other customers.

17 Advice and information for International Removals

We will use Our reasonable endeavours to provide You with up to date information to assist You with the import/export of Your goods. Information on such matters as national or regional laws and regulations which are subject to change and interpretation at any time is provided in good faith and is based upon existing known circumstances. It is Your responsibility to seek appropriate advice to verify the accuracy of any information provided.

18 Applicable law

Any dispute between us will be governed by the non-exclusive law and jurisdiction of the English or Scottish Courts. If you currently reside or are moving to a place outside the jurisdiction of the Courts of the United Kingdom, alternative laws or jurisdiction of local courts may apply subject to our written agreement prior to the work or services commencing.

19 Your forwarding address

19.1 If You instruct Us to store Your goods, You must provide a correct and up to date address and telephone number and notify Us if it changes. All correspondence and notices will be considered to have been received by You seven days after sending it by first class post to Your last address recorded by Us

19.2 If You do not provide an address or respond to Our correspondence or notices, We may publish such notices in a public newspaper in the area to or from which the goods were removed. Such notice will be considered to have been received by You seven days after the publication date of the newspaper. Note: If We are unable to contact you, We will charge you any costs incurred in establishing Your whereabouts.

20 List of goods (inventory) or receipt

Where we produce a list of Your goods (inventory) or a receipt and send it to You, it will be accepted as accurate unless You write to us within 10 days of the date of our sending, or within a reasonable period agreed between us, notifying Us of any errors or omissions.

21 Revision of storage charges

We review our storage charges periodically. You will be given 30 days' notice in writing of any increases.

22 Our right to Sell or dispose of the Goods

If payment of Our charges relating to Your goods is in arrears, and on giving You three months' notice, We are entitled to require You to remove Your goods from Our custody and pay all money due to Us. If You fail to pay all outstanding amounts due to Us, We may sell or dispose of some or all of the goods without further notice. The cost of the sale or disposal will be charged to You. The net proceeds will be credited to Your account and any eventual surplus will be paid to You without interest. If the full amount due is not received, We may seek to recover the balance from You.

23 Termination

If payments are up to date, We will not end this contract except by giving You three months' notice in writing. If You wish to terminate Your storage contract, You must give us at least 10 working days' notice (working days are defined in Clause 6 above). If We can release the goods earlier, We will do so, provided that your account is paid up to date. Charges for storage are payable to the date when the notice should have taken effect.

- END OF TERMS AND CONDITIONS –